Republic of the Philippines
National Police Commission
PHILIPPINE NATIONAL POLICE
NATIONAL HEADQUARTERS, PHILIPPINE NATIONAL POLICE
OFFICE OF THE CHIEF, PNP
Camp BGen Rafael T. Crame, Quezon City

PHILIPPINE NATIONAL POLICE, *Complainant-Appellee,*	**ADMIN. CASE NO. RIAS9-NMP-ADM-18-043**
-versus-	*-for-*
PO1 TEDDY A. ABAT, *Respondent-Appellant.*	**GRAVE MISCONDUCT and CONDUCT UNBECOMING OF A POLICE OFFICER**

x - x

NOTICE OF APPEAL

COMES NOW, **THE RESPONDENT-APPELLANT,** through the undersigned counsel and unto the Honorable Office, most respectfully files the foregoing Notice of Appeal and further avers: THAT

1. On 16 July 2019, Appellant-Respondent was in receipt of the Resolution of the Office of the Chief of Philippine National Police dated 10 June 2019 relative to the Motion for Reconsideration filed before the said Office;

2. This Notice of Appeal is filed pursuant to Section 2, Rule 8 and Sections 1, 2 and 3 of Rule 20 of National Police Commission (NAPOLCOM) Memorandum Circular No. 2016-002 otherwise known as The Revised Rules of Procedure Before the Administrative Disciplinary Authorities and Internal Affairs Service of the Philippine National Police;

3. Relative thereto, Respondent-Appellant would like to manifest that he will be filing the required Memorandum

on Appeal within Fifteen (15) days from the filing of this Notice of Appeal as allowed by the Rules.

4. This Appeal shall be filed before the **National Appellate Board** in accordance with Section 2, Rule 8 of NAPOLCOM Memorandum Circular No. 2016-002;

5. With due respect to the Honorable Office, this Appeal is grounded on the following errors:

   a) It was erroneous for the Honorable Office to conclude that the Respondent is guilty of Grave Misconduct and Conduct Unbecoming of a Police Officer as there are serious errors of law or irregularities which the National Appellate Board must take a look to correct the errors committed by the Disciplinary Authority and to prevent any violation of the rights of herein Appellant-Respondent;

   b) It was erroneous for the Honorable Office to conclude that the Respondent is guilty of Grave Misconduct and Conduct Unbecoming of a Police Officer as there are serious errors of facts which the National Appellate Board must take a look to correct the errors committed by the Disciplinary Authority and to prevent any violation of the rights of herein Appellant-Respondent;

   c) Furthermore, there are also newly discovered evidence, which if presented, could materially affect the Decision rendered by the Disciplinary Authority;

6. As further compliance, attached hereto is a Postal Money Order in the amount of Three Hundred Pesos (Php 300.00) in compliance with the prescribed appeal fee;

7. Finally, the respondent-appellant may be served with notices, orders and other legal processes of the Appellate Body at the address of his below-named counsel at ESGUERRA GENERAL GENERAL and ELUMBA LAW

FIRM, Esquire Centre Building, Tomas Claudio Extension, Zamboanga City, 7000;

RESPECTFULLY SUBMITTED, this 22nd day of July 2019 at Zamboanga City for Quezon City, Philippines.

Esguerra General General & Elumba Law Firm
Counsel for ***RESPONDENT-APPELLANT***
PAT TEDDY A. ABAT
ESQUIRE Centre Building
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By:

ATTY. HAIDISHEENA A. ALLAMA
Roll No. 72228; 6-14-19
PTR No. 1923572; 6/18/2019; Zamboanga City
MCLE Compliance: EXEMPT (NEWLY ADMITTED)

Copy furnished:

PSUPT RUPERTO D.G. SALAZAR
ZAMBOANGA CITY POLICE OFFICE
P. Lorenzo St., Zamboanga City

E X P L A N A T I O N

The foregoing Notice of Appeal will be served to the Office of the Nominal Complainant and filed before the Honorable Office of the Chief, Philippine National Police thru registered mail with return card because of distance which makes personal service and filing impracticable.

ATTY. HAIDISHEENA A. ALLAMA